

Village Voice

Position under UK social media legislation

Interim Summary

Purpose

This note sets out, in summary form, the position of Village Voice under the legislation commonly described as the UK's "social media" framework. It is intended for distribution pending the issue of the formal compliance documentation, which is in preparation.

Applicable legislation

The principal statute is the Online Safety Act 2023 (the OSA), the United Kingdom's framework for the regulation of online user-to-user services, search services, and pornography services. The regulator is Ofcom. The Act received Royal Assent on 26 October 2023 and has been brought into force in phases through 2025 and 2026.

Is Village Voice within scope?

Yes. Village Voice is a user-to-user service for the purposes of the OSA. The statutory threshold is met as soon as one user is able to encounter content generated, uploaded, or shared by another.

Secretaries posting events and news, together with any future resident-generated content such as Stories, club discussions, or voice messages, place the service within this definition.

Token-based access, vetted membership, small user numbers, and the absence of a content recommender system do not remove a service from scope. There is no general small-platform or SME exemption under the Act.

The narrow exemptions in Schedule 1 to the OSA do not apply. The internal business services exemption, in particular, is intended for tools available only to a closed group within a business, such as intranets, customer relationship management systems, and collaboration software. A resident-facing community application is not within its terms, even where access is gated.

What this means in practice

OSA duties scale according to the size and risk profile of the service. Village Voice sits at the lower end on both measures: a single community at pilot stage, vetted residents, an approval queue for news content, no recommender system, no anonymous posting, and a resident demographic in which access by children is implausible. Ofcom's expectations for services of this character are correspondingly proportionate.

The thresholds for designation as a Category 1, 2A, or 2B service, which carry significantly heavier obligations including transparency reporting and adult user empowerment duties, sit far above Village Voice's reach. Category 1 begins at several million United Kingdom users. The annual fee regime applies only to providers with qualifying worldwide revenue above £250 million. Neither will apply to Village Voice at any plausible scale during the pilot or its initial roll-out.

Duties that apply

The core duties for an in-scope user-to-user service such as Village Voice are, in summary:

1. An illegal content risk assessment, kept current and reflecting any material change to the service.
2. A children's access assessment. Given the resident demographic, Village Voice expects to conclude that children are not likely to access the service, which disapplies the children's protection duties. The conclusion will be documented.
3. Proportionate systems and processes to prevent users encountering illegal content and to remove such content where it appears.
4. An accessible reporting and complaints mechanism for users, capable of triggering the removal of illegal content.
5. Terms of service reflecting the above and made available to users.
6. Records of risk assessments, incidents, and decisions sufficient to evidence compliance to Ofcom on request.

Adjacent regimes

The OSA is the principal piece of "social media legislation", but two adjacent regimes are equally relevant in practice and are being addressed in parallel.

UK GDPR and the Data Protection Act 2018 govern the personal data of residents, family members, and contributors. This is operationally the most consequential regulatory regime for Village Voice in day-to-day operation. The Equality Act 2010 informs the digital accessibility standards adopted in the design of the application, which is a matter of substance in a community whose members are predominantly older.

Status and timeline

The formal documentation comprising the illegal content risk assessment, the children's access assessment, the terms of service, the reporting and complaints mechanism, and the accompanying data protection notices is in preparation and will be issued prior to the conclusion of the pilot phase. This summary is provided in the interim to enable substantive conversations as and when required.

Penalties under the OSA can in principle reach £18 million or ten per cent of qualifying worldwide turnover, whichever is greater. Ofcom's stated approach to enforcement is collaborative, and its expectations are scaled to the size and risk of the service.